

Court No. - 36

Case :- WRIT - C No. - 59020 of 2014

Petitioner :- M/S Mayur Sheetgrah Pvt. Ltd. Thru' Its Director

Respondent :- U.P. Power Corporation Ltd. & 4 Others

Counsel for Petitioner :- Rahul Agrawal, Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Rakesh Tiwari, J.

Hon'ble Mrs. Vijay Lakshmi, J.

Heard counsel for the parties and perused the record.

Against theft assessment order by the electricity department, the petitioner has approached this Court. Earlier also, writ petition no. 41406 of 2014 was filed by the petitioner on the issue and the same was dismissed by judgment and order dated 11.8.2014 on the ground of availability of alternative remedy.

Submission of the counsel for petitioner is that respondent corporation is arbitrarily charging interest with effect from 1.4.2009 to 30.6.2014 in violation of clause 6.8(e)(b) of Electricity Supply Code, 2005 and section 127(6) of the Electricity Act. Learned counsel does not dispute the fact that objection raised here can be raised in the appeal as well.

In the facts and circumstances of the case, no case for interference is made out in exercise of the powers under Art. 226 of the Constitution of India. The writ petition is accordingly dismissed. The petitioner may file statutory appeal under section 127 of the Electricity Act, 2003 as directed by aforesaid order dated 11.8.2014.

Order Date :- 7.11.2014

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